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Transnational delegation in global environmental governance: When do non-state actors govern?

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Abstract

Non-state actors – including firms, non-governmental organizations, and networks – are now a permanent fixture in environmental politics. However, we know surprisingly little about when states choose to delegate to non-state actors through multilateral treaties. This paper provides an historical picture, tracing patterns of delegation to non-state agents in a random sample of multilateral environmental agreements from 1902 to 2002. I introduce a new unit of analysis – the policy function – to understand what non-state actors actually *do* as agents. I find that analyses of delegation are sensitive to the unit of analysis; patterns of delegation at the treaty level are very different from those at the level of individual policy functions. While overall the decision to delegate to non-state actors – what I term *transnational delegation* – is rare, it has grown over time. Complex treaties, those with secretariats, and those focused on the management of nature are more apt to delegate to non-state actors. Non-state agents fill a small, but growing role in multilateral environmental treaties.

Keywords: delegation, environmental governance, private authority.

1. Introduction

Non-state actors are now a permanent fixture in environmental politics (Green 2014). Environmental non-governmental organizations (NGOs) lobby domestic governments in order to influence intergovernmental negotiations. Firms also seek influence through umbrella organizations, such as the World Business Council on Sustainable Development, as they present a united position on a variety of environmental matters. Outside of multilateral conferences, transnational advocates engage in contentious politics, seeking major revisions to the status quo. And increasingly, non-state actors of all stripes are creating their own rules and standards to address environmental problems. One can now buy sustainably harvested timber, genetically modified (GMO)-free food, and even go on a certified-green vacation. Non-state actors have permeated global environmental politics.

However, the instances in which states delegate to non-state actors through multilateral environmental treaties have received less examination. There is a considerable body of work on when and why states delegate to international organizations (IOs), but relatively little is known about when, much less why, states delegate to non-state actors. Delegation should not be overlooked as an important mode through which non-state actors exercise authority in global environmental politics.

This paper begins to fill this gap by providing an historical picture of delegation to non-state actors, what I term *transnational delegation*. I present data that traces patterns of delegation in a random sample of multilateral environmental agreements from 1902 to 2002. I disaggregate each treaty into its constituent functions, which allows us to see not only when states choose non-state actors as agents, but for what purposes. Using the policy function as the unit of analysis provides a detailed look at who is actually carrying out the "nuts and bolts" of governing. More importantly, by changing the unit of analysis from the treaty to the policy function, we see a very different picture of how non-state actors participate in international environmental governance. For example, the data show that while states delegate to non-state actors in approximately 20 percent of the treaties studied, when the unit of analysis shifts to the policy function, their role is much smaller – contributing to less than 4 percent of all policy functions.

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I compare my findings to similar studies by Koremenos (2007, 2008), who also examines the role of non-state actors in international treaties. A comparison of our analyses shows that conclusions are very sensitive to the unit of analysis. Her analysis examines patterns of delegation at the treaty level, which demonstrates that it is a widespread phenomenon. However, when one disaggregates treaties to examine distinct policy functions, as I do, delegation occurs much less frequently.

Finally, I employ descriptive inference to make some evidentiary-based generalizations about the practice of delegation to non-state actors. I eschew a grand theoretical explanation; rather, I focus on the diverse factors that are associated with delegation. These factors provide insights into transnational delegation – a set of practices about which we know very little. There is, I argue, great value in careful empirical work, even if it is not guided by formal empirical tests. As such, I do not seek to test these explanations against each other. Rather, the data and analysis presented here aim to inform "mid-level theory," which is, admittedly, "less exciting than the Great Debates" that pits the "-isms" "against one another" (Lake 2013, p. 568). However, mid-level theory has its merits: its "analytic eclecticism" aims to form the basis for new, richer research agendas that push past the Great Debates (Sil & Katzenstein 2010). This paper heeds the call for eclecticism, by "recognizing and delineating relationships between concepts, observations and causal stories" (Sil & Katzenstein 2010, p. 2). Indeed, my hope is that careful descriptive inference can lay the foundation for future efforts to identify generalizable conditions.

The paper proceeds as follows. The first section defines key terms and provides examples of transnational to non-state actors. The second section reviews the relevant literature on delegation, focusing on non-state actors as agents. There is, of course, a vast literature, particularly in economics and American politics, about delegation, but these are not examined here. Rather, I survey the diverse literature that explores what we know about when states, acting collectively, choose to delegate to non-state actors. Section three describes a new dataset on delegation to non-state actors in multilateral environmental agreements, explaining how the data was gathered and coded. Section four provides basic descriptive statistics. Finally, section five presents the findings from the data.

2. Delegation at the transnational level

Delegation can be understood as a "conditional grant of authority from a *principal* to an *agent* that empowers the latter to act on behalf of the former" (Hawkins *et al.* 2006, p. 7). In the context of international politics, delegation is defined as "*a grant of authority by two or more states to an international body to make decisions or take actions*"(Bradley & Kelley 2008, p. 3; emphasis in original). In international relations, studies of delegation tend to focus on the international level, where the principal is a collective one. Thus, examples of delegation that conform to this definition include when states allow trade disputes to be adjudicated by the Dispute Settlement Body of the World Trade Organization, or the authority granted to the World Bank to fund and oversee development projects. These are both examples of states acting collectively: jointly, they oversee these IOs, which are then delegated authority to carry out a specific set of tasks.

This study focuses on *transnational delegation:* delegation of authority by states, acting collectively, to *non-state actors*. This study defines non-state actors broadly, to include NGOs, firms, and transnational networks, as well as scientific and other expert bodies. (This list is meant to be indicative, rather than all-inclusive.) Thus, I use the term to include all actors that are neither states nor IOs. To be clear, this definition does *not* include instances in which *individual* states delegate to non-state actors. Thus, if the United States chose to outsource some of its military activities to private military contractors, this would not be included in the study, because the principal is not a collective but rather an individual state.

A few examples from the data provide a better picture of what delegation to non-state actors looks like. The 1972 Convention for the Conservation of Antarctic Seals is one of five agreements that comprise the Antarctic Treaty System. It delegates monitoring functions to an NGO called the Scientific Committee on Antarctic Research (SCAR). SCAR is an interdisciplinary committee of another NGO, the International Council for Science, which provides scientific advice to multilateral agreements, including the 1972 Seal Convention. The treaty notes, "Each Contracting Party shall also provide to the other Contracting Parties and to SCAR…information on any steps it has taken in accordance with Article 2 of this Convention" (Mitchell 2002–2016). Thus, monitoring is simultaneously not delegated (as states are responsible) and delegated to a non-state actor.

Another example is drawn from the 1958 Convention on Fishing And Conservation Of The Living Resources Of The High Seas (Mitchell 2002–2016). It states that "any dispute which may arise between States…shall, at the request

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of any of the parties, be submitted for settlement to a special commission of five members." Thus, states choose to delegate dispute settlement to an unspecified third party.

Some treaties delegate to non-state actors for specific tasks. The 1983 agreement establishing the International Tropical Timber Organization states that the governing body "shall appoint independent auditors for the purpose of auditing the accounts of the Organization" (Mitchell 2002–2016). The 1946 Whaling Convention states that Parties may cooperate with (unspecified) private agencies to study whaling in order to collect and analyze statistical information on stocks.

These examples provide a flavor of what transnational delegation actually looks like in practice. Many different types of actors may be named – ranging from NGOs to independent bodies. And they may be tasked with a number of different responsibilities.

3. What do we know?

While there is a sizable body of work on why states delegate to IOs, we know relatively little about transnational delegation. A few works consider non-state actors as a postscript to larger studies on international delegation. For example, Hawkins *et al.*'s (2006) edited volume examines delegation to IOs. Only one chapter – the last one – includes any consideration of non-state actors. Lake and McCubbins (2006) trace the potentially important role of NGOs as information providers through a series of theoretical models, rather than empirical analysis. Similarly, Bradley and Kelley's (2008) work on international delegation includes only a small role for non-state actors. In their framework of delegation, they include a category called "redelegation," in which agents may in turn enlist other agents to help carry out particular tasks, thus lengthening the chain of delegation. They note, "After states delegate to international bodies, these bodies often have the power to redelegate that authority to other international bodies or to other actors such as nongovernmental organizations" (Bradley & Kelley 2008, p. 5). Thus, non-state actors are listed as one of a number of possible agents, but little theorizing or data informs their discussion.

A handful of works focus specifically on transnational delegation, although they do not label it specifically as such. Perhaps best known is Büthe and Mattli's (2011) work on private regulation in global financial and product markets. They identify the delegation of regulatory authority to private rulemaking bodies as "the simultaneous privatization and internationalization of governance" (Büthe & Mattli 2011, p. 5). This can be understood as an instance of transnational delegation. The authors view this shift as "privatization" because the rulemaking bodies in both sectors are international private sector bodies that are uncontested focal institutions. Unlike private certification schemes, these are non-market private international standard-setting bodies, whose standards dominate the private sector. They include standard-setting bodies like the International Organization for Standardization and the International Electrotechnical Commission.

Büthe and Mattli's work provides several key insights into transnational delegation. First, they point out that "global private regulation has in recent years become vastly more important and is now a phenomenon of considerable social and economic consequence—it matters to understand it" (Büthe & Mattli 2011, p. 10). That is, they provide an overview of global governance in the areas of global finance and global products and convincingly demonstrate both the breadth and the impacts of transnational delegation. For instance, they describe that in a few short decades after its creation in 1947, the International Organization for Standardization (ISO) went from creating standards on basic materials in engineering to regulating products as diverse as chemical technology, alternative energy, and air and water quality (Büthe & Mattli 2011, p. 132).

Second, they describe the political implications of these standard-setting entities. They ask: Who wins and who loses when the rulemakers are private bodies? They find that the answer depends not only on the financial and epistemic resources of private actors, but also on domestic institutions. Hierarchical domestic institutions allow stakeholders to "speak with a single voice and in a timely fashion on the global stage" (Büthe & Mattli 2011, p. 13). These findings have broader implications when considered in context with the effects of economic globalization. As the authors point out, "[i]nternational trade law encourages the use of international standards…[and this] increasingly entail[s] referencing the pertinent standards of private transnational bodies" (Büthe & Mattli, 2011, p. 205). Thus, transnational delegation can have potentially far-reaching impacts.

Although she is concerned with the practice of delegation more broadly (primarily to IOs), Koremenos' work also provides insights about when and why states delegate to non-state actors. She finds that delegation is "widespread" and

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is more likely when a large number of states are trying to solve complex cooperation problems (Koremenos 2008). Her study analyzes a random sample of 97 multilateral United Nations treaties in the areas of economics, environment, human rights, and security. Koremenos examines both "internal delegation," where states delegate to a subgroup within the agreement, and "external delegation," where states delegate to a third party. When both types of delegation are included, delegation occurs in more than half of the treaties. External delegation occurs in roughly 40 percent of treaties.[1] In cases of external delegation, she notes that six agreements mention NGOs – one type of non-state actor. Thus, in Koremenos' work, delegation to non-state actors occurs in approximately 6 percent of the sample (i.e. six of the 97 agreements); the majority of delegation occurs in human rights agreements. In general, she finds that delegation can be explained by theories of "rational design" (Koremenos *et al.* 2001). That is, delegation is a functional response to a cooperation problem. Dispute resolution is the most frequently delegated task, while delegation to a third party solves the challenges of enforcement and commitment by enlisting an impartial third party.

There are other case studies of transnational delegation that also inform this investigation. Green (2008) and Lund (2010) examine the challenges of delegating to private quality assurance firms in the Clean Development Mechanism of the Kyoto Protocol. They point to institutional design features that could potentially incentivize dishonest behavior. Given these potential conflicts of interest, their work raises questions about whether non-state actors are desirable agents in this instance.

A large body of legal literature on global administrative law considers the "mechanisms, principles, practices, and supporting social understandings that promote or otherwise affect the accountability of global administrative bodies" (Kingsbury *et al.* 2005, p. 17). Frequently, these administrative bodies are private. Thus, casebooks on global administrative law demonstrate that transnational delegation is present in many diverse corners of the global political landscape. Private credit rating agencies, such as Moody's and Standard & Poor's determine the credit-worthiness of firms, which are, in turn, incorporated into public regulatory standards on banking. Transnational delegation is also a prominent feature of Internet regulation. The Internet Corporation for Assigned Names and Numbers (ICANN) is a private US corporation that has been delegated the authority to manage the address system of the Internet (although this will soon be transferred to an international body). Even doping in world sport is under the regulatory authority of non-state agents. The World Anti-Doping Agency is a Swiss NGO. It was delegated authority by the International Olympic Committee to set standards about prohibited substances and training methods, as well as procedures for testing and disciplining infractions (Casini 2009, p. 433). The World Anti-Doping Agency's rules and practices have become the basis for domestic regulations to implement the International Convention Against Doping in Sport.

This brief snapshot of transnational delegation shows both the surprising breadth and depth of a phenomenon that is not generally recognized as an object of scholarly study. Non-state actors are performing transnational regulatory roles in a diverse set of issue areas, sometimes with great political effect. However, most research on delegation at the international level focuses on IOs. Because it has been spread across a variety of different literature, the little work that has been done on delegation to non-state actors lacks a theoretical home. One goal of this exploration is to identify this phenomenon and provide a systematic review of how it operates.

The choice of the environmental arena as the focus of study also merits explanation. I consider this a "most-likely" case of delegation to private actors, because environment is seen as particularly permeable to non-state actors (Princen & Finger 1994). If delegation to non-state actors is a widespread phenomenon, then we should expect to see it in environmental politics.

4. The data

The data presented moves beyond frameworks and case studies to provide a historical account of delegation practices in the area of environmental politics. In turn, this allows for descriptive inference, in which I make generalizations about delegation practices based on the observed variation.

I created a new dataset that maps patterns of delegation in multilateral environmental agreements (MEAs). The dataset is built on Mitchell's data on MEAs (Mitchell 2002–2016). Mitchell's dataset is a random sample of 152 multilateral environmental treaties from 1902 to 2002, drawn from all extant MEAs drafted between 1857 and 2002. In his data, each article of each agreement is coded for specific legal and institutional features. The agreements cover a range of environmental issues including energy, freshwater resources, habitat, oceans, pollution, and species.[2]

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My data builds on his random sample. I used a subset of Mitchell's codes, including only those codes (and therefore treaty text) that contained information relevant to my inquiry. Specifically, I excluded 14 codes that were clearly irrelevant to the substance of the treaty, for example, codes that listed the title of the treaty, the list of countries that signed, and the URL that contained the text of the treaty. Any borderline codes, which could possibly include useful data, were included in my dataset. I am confident that this did not exclude any data containing information on delegation, and certainly not in any systematic way that would bias the findings. After omitting these codes from the sample, I developed the coding instrument, which was then pre-tested on a separate set of treaties.

The selection process yielded 1,490 articles from across the 152 MEAs. I then read each article and coded it for two attributes: policy function and actor responsible. Each article could include multiple actors and multiple policy functions (these functions are described further). This process yielded 1,857 separate policy functions contained in the 152 treaties. The unit of analysis is the policy function, of which there are five: rulemaking, adjudication, implementation, monitoring, and enforcement. These categories, and the associated coding instrument are based on the existing literature on delegation and the regulatory process.[3]

I recorded coding decisions using the Coding Analysis Toolkit (CAT), a web-based software program used for coding qualitative data. The CAT provides a platform for users to code raw text. It does not engage in automatic coding through word searches or algorithms; rather it provides an interface for users to develop and pretest coding instruments, and then code, review, and annotate data.[4] In sum, the difficult work of conceptualizing the variables and coding the data remains the responsibility of the researcher.[5]

After developing the coding instrument, I checked the codes for consistency with the only other similar large-N dataset (to my knowledge), developed by Koremenos.[6] Her instrument contains many more "tasks" (what I have termed *functions*) than mine, but are largely comparable in substance. While absolute comparability across qualitative datasets is not possible, this triangulation provides a useful indication that the logic of the coding and categories are robust to others' specifications.

Each policy function comprises distinct activities. Rulemaking includes the authority to make or amend treaties, as well as "to create administrative rules, to implement, fill gaps in, or interpret preexisting international obligations" (Bradley & Kelley 2008, p. 12). Implementation is coded as instances in which actors "carry out agreed-upon programs and projects, including internal administrative tasks" (Bradley & Kelley 2008, p. 14). Conducting specific projects, training, capacity building, and technology transfer are all considered aspects of treaty implementation, as is general scientific research. All discussion of budget, finances, and financial mechanisms is also coded as implementation.

While implementation may seem to be simply the technical execution of pre-specified rules, it is not devoid of the exercise of authority. Actors charged with implementation must make decisions about how to achieve the goals that states have set. This process involves a variety of decisions about policy design. An example from the data demonstrates that mere acts of "implementation" also involve the exercise of authority. Article IV of the 1946 Whaling Convention states that the International Whaling Commission may collaborate with public or private agencies to:

a encourage, recommend, or if necessary, organize studies and investigations relating to whales and whaling;
b collect and analyze statistical information concerning the current condition and trend of the whale stocks and the effects of whaling activities thereon;
c study, appraise, and disseminate information concerning methods of maintaining and increasing the populations of whale stocks.

Clearly, decisions about *who* will carry out studies, and on what subjects can have profound effects on the policymaking process. Moreover, the outputs of these studies, which make judgments about the state of the species, can also affect states' behavior. Thus, because authority is a type of power, which implies consent on the part of those subject to that power, even "lesser acts" of implementation can be considered a form of authority (Friedman 1990; Raz 1990; Lake 2009).

Monitoring comprises any collection or dissemination of information. It can range from self-reporting by states to instances in which third parties inspect and verify compliance. Carrying out scientific assessments about specific topics related to rules (catch limits, deforestation levels, etc.) or updating information to reflect scientific knowledge are also coded as monitoring activities. Monitoring in the Convention on the Trade in Endangered Species, for example, occurs in three phases. First, states report to the Secretariat about trade in protected species (listed in the Annexes of the treaty) occurring within their borders. Then, the Secretariat communicates any problems to the relevant Management

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Authorities established by the treaty (Article 13). Finally, the Management Authority must then report about the relevant laws and propose remedial actions as needed. Although conceptually, monitoring and adjudication are closely related, in this study, adjudication is limited to decisionmaking with respect to a dispute or controversy (Bradley & Kelley 2008, p. 12).

Adjudication encompasses all authority to resolve disputes. In cases where adjudication includes provisions for corrective measures or sanctions, it is also coded as enforcement. Finally, enforcement includes activities that initiate or conduct investigations about compliance with the rules, intervention in other states' behavior, imposing sanctions or retaliatory actions, or mandating that corrective actions be taken in response to non-compliance. For instance, the aforementioned Tropical Timber Agreement allows the governing body of the treaty to eject non-compliant members. Article 40 states, "If the Council decides that any member is in breach of its obligations under this Agreement and decides further that such breach significantly impairs the operation of this Agreement, it may, by special vote, exclude that member from this Agreement" (see Mitchell 2002–2016).

In some cases, an article within the treaty specifies that more than one actor is responsible for a given policy function. For instance, the 1935 Convention For The Campaign Against Contagious Diseases Of Animals requires that states report on domestic organizations qualified to implement the treaty – an implementation function that is not delegated. However, the same article also requires that the League of Nations disseminate these reports to all other parties – an act of delegation to an IO. Thus, multiple actors may be assigned to the same function– a reality of the complexities of international environmental lawmaking.

Moreover, a given function may be simultaneously delegated and not delegated. For instance, in the Whaling example cited above, when organizing scientific investigations, the Commission may choose to do so "in collaboration with or through independent agencies of the Contracting Governments or other public or private agencies, establishments, or organizations, or independently." Thus, the Commission may choose to delegate this implementation function, but need not do so; as a result, it is coded simultaneously as delegated and not delegated.

The four possible actors responsible for these activities include: states themselves (i.e. no delegation), a subset of states, an IO, or a non-state actor. Delegation occurs when one of the latter three actors is responsible for a policy function. For example, in the Convention on Long-Range Transboundary Air Pollution, the treaty states that the Executive Secretary "shall carry out…secretariat functions" including convening meetings, transmitting information to the Parties, and executing other tasks outlined by the Executive Body. This is coded as an act of delegation to an IO (the Secretariat), responsible for implementation.

Because governance does not end with the signing of a treaty, I also coded decisions made by parties after the treaty entered into force. "Post-treaty" decisions are the nuts and bolts of global environmental governance: they constitute administrative rulemaking about how to further the goals of the treaty. As noted above, many MEAs create a governing body called the Conference of the Parties, which meets regularly to review progress and make further rules. Post-treaty data is drawn from the decisions made at these regular meetings. I coded 518 post-treaty decisions for the same variables: policy function and actor responsible for that policy function.

Post-treaty decisions help to provide a more complete picture of the practice of delegation. The crafting of a treaty has high political stakes (Koremenos *et al.*, 2001). It is precisely for this reason that states shy away from harsh penalties for non-compliance or insert "escape clauses" (Rosendorff & Milner 2001). Generally speaking, post-treaty decisions are less highly legalized, because they do not require the same level of consensus to amend (Abbott *et al.*, 2000). Treaties either specify a procedure for amendment, or require consensus among all signatories. Post-treaty decisions, by contrast, are often made and approved by sub-bodies of the treaty; thus, the number of veto points is generally lower, as is the threshold for change. Examining delegation at the post-treaty level, therefore, provides additional information about state practice when decisions are more easily reversed, and the political stakes are generally lower.

The post-treaty data is intended to provide a comparison with delegation practice at the treaty level. However, because the data are not representative, I do not draw inferences from them. Only 44 of the 152 MEAs have post-treaty decisions available electronically. I drew a random sample of post-treaty decisions from among these 44 treaties, which run from 1946 until 2008. I used the same coding rules to determine whether or not delegation occurred, the agents selected, and the policy functions named.

There were a number of challenges in sampling the post-treaty data. First, sub-treaty decisions vary considerably in length, ranging from one to hundreds of pages. In short, the problem here is that not all post-treaty decisions are equivalent: some contain only one decision, while others contain many. To address this problem, I stratified the sample into

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two groups. In the first group, there was one decision per document (n = 3198 decisions). I simply used a random number generator to select which documents to code. In the second, I used a random selection of decisions within documents (n = 280 documents).[7]

In addition to sampling challenges, post-treaty decisions are likely to suffer from some selection issues. First, post-treaty decisionmaking is not independent; it is a direct result of decisions made (or not made) in the treaty. Second, the majority of treaties with electronic post-treaty decisions are, unsurprisingly, more recent. The earliest treaty with electronically available post-treaty decisions is the 1949 Asia-Pacific Fishery Commission. Recall that the treaty data begins in 1902; 9.2 percent of treaties in the sample are signed before 1949.

It is likely that there is an upward bias in the post-treaty decisions, because those treaties that meet regularly are apt to be more complex and require more management. While this fact might inflate the overall rates of delegation, there is no reason to believe that any specific policy function is overrepresented, nor that there should be systematic differences between groups of agents. In other words, there is no reason to believe that upward bias should skew differences among groups of agents. Thus, the distribution of functions should be an accurate estimate of the sampling frame. The best solution in this situation is to acknowledge the potential sources and direction of bias (King *et al.* 1994).

5. Descriptive statistics

5.1. Treaty level

Table 1 shows the distribution of policy functions across the 152 treaties, irrespective of the actor responsible. Because there are multiple policy functions per treaty, the total N is 1,847. Implementation occurs most frequently, followed by rulemaking. Adjudication and enforcement are the least frequently occurring. This is consistent with the oft-made observation that international environmental law is relatively weak, because most legal agreements lack enforcement mechanisms (Najam 2005; Bodansky 2011).

Table 2 shows the distribution of actors responsible for each policy function. Here, the first important finding is that delegation – to *any* actor – is relatively rare. Less than a third of all policy functions are delegated to an agent – state, IO, or non-state actor. This finding stands in contrast to Koremenos' work, which finds that delegation is "widespread," occurring in more than half of the agreements in her sample (Koremenos 2008, p. 159).

This seeming inconsistency can be reconciled by a closer examination of the unit of analysis. Koremenos analyzes patterns of delegation *by treaty*. Thus, a single act of delegation in a treaty is sufficient to generate a positive

Table 1 Distribution of policy functions, treaty level (n = 1,847)

	N	%
Rulemaking	400	21.7
Adjudication	119	6.4
Implementation	1010	54.7
Monitoring	218	11.8
Enforcement	100	5.4
Total	***1847***	***100.0***

Table 2 Number of policy functions delegated by actor, treaty level (n = 1,847)

	State agent (no.)	State (%)	IO agent (no.)	IO agent (%)	Non-state agent (no.)	Non-state agent (%)
Rulemaking	18	21	41	10	6	9
Adjudication	11	13	39	10	23	33
Implementation	45	52	259	64	25	36
Monitoring	8	9	50	12	11	16
Enforcement	5	6	15	4	5	7
TOTAL (per actor)	87	100	404	100	70	100

IO, international organization.

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value – hence the high rate of delegation. Indeed, at the treaty level, I find an even higher rate than Koremenos, with 80 percent of treaties including *some* form of delegation (to any type of agent, including a subgroup of states). Moreover, in my dataset, roughly half of the treaties delegate half of the policy functions to some agent or another. That is, within a given treaty, there is considerable variation in rates of delegation.

Interestingly, Koremenos also finds that treaties seldom delegate the same task to more than one agent (2008, pp. 162–3). By contrast, I find that this is frequently the case. 25 percent of all policy functions delegated enlist more than one actor for the job. Moreover, while 3.8 percent of policy functions are delegated to non-state actors, they only serve as the *sole* agent in less than 1 percent of all policy functions. Therefore, in the vast majority of cases where states delegate to non-state actors, they also choose another agent.

Finally, another study by Koremenos (2007) finds that dispute resolution is very common; half of all treaties in her random sample across four issue areas contain dispute resolution provisions. She subdivides dispute resolution into different categories, including adjudication, which she defines as instances "where a court steps in to make a ruling for the disputants" (Koremenos 2007, p. 198). In the subset of the sample that includes environmental agreements, she finds that adjudication occurs in half of the treaties.[8] Across all four issue areas, she finds adjudication is delegated in 25 percent of the treaties studied. By contrast, at the treaty level, I find that a much smaller proportion, only 9 percent, of all treaties delegate adjudication. However, at the level of the policy function, this number grows considerably: 61 percent of all adjudication policy functions are delegated.

Table 2 also demonstrates that non-state actors play a small role as agents in environmental governance. They serve as agents in only 3.8 percent of all policy functions. This includes 20 percent of all of the treaties in the sample. By contrast, 21.8 percent of all functions are delegated to IOs. Koremenos finds delegation to NGOs in only 6 percent of the agreements in her sample; however, her exclusive focus on NGOs – as opposed to other types of non-state actors – is much more restrictive than the operationalization in this study (2008, pp. 156, 159).

This comparison demonstrates that the unit of analysis is critical in understanding delegation and the role of private actors as agents. At the level of the treaty, one might conclude that delegation is fairly common, as both my data and Koremenos' indicate. However, their overall share of governing – as measured by policy function – is substantially lower according to my data. It appears that using the policy function as the unit of analysis provides a much more accurate picture of who is actually charged with governing.

The analysis above shows that a better understanding of the role of private actors as agents requires a focus on the number and type of policy functions delegated.

To lend further clarity to the precise nature of delegation, I examine instances in which they are the *sole* agents tasked with a given function. Recall that the coding scheme allows for more than one actor to be responsible for a policy function. Thus, states may choose to simultaneously delegate to an agent and be responsible for it themselves. For example, a treaty may require that states self-report their fish catches (coded as monitoring), but then also mandate that the Secretariat disseminate that information to other parties (also coded as monitoring). In that instance, monitoring is both delegated and not delegated.

Table 3 shows the instances in which private actors serve as sole agents, by policy function. Out of the 1,847 policy functions in the dataset, 70 are delegated to non-state agents, and of these 70, only 19 are delegated *solely* to non-state agents – less than 1 percent. The majority of the time they govern in tandem with other actors. This finding can be interpreted in two ways. First, it could support the view that non-state actors are rarely seen as having a unique comparative advantage in governing. Alternatively, it may demonstrate more simply that governments prefer not to have non-state actors in positions of authority.

Table 3 Non-state actors as *sole* agents, treaty level ($n = 70$)

	Policy functions delegated(no.)	Non-state actor as ***sole*** agent(%)
Rulemaking	6	0
Adjudication	23	30
Implementation	25	32
Monitoring	11	36
Enforcement	5	0
TOTAL	70	27

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5.2. Post-treaty level

Given that treaties are highly legalized agreements that are difficult to change, it is understandable that states would be wary of delegating authority to others at the treaty level. For this reason, I also examine rates of delegation once the treaty enters into force. I reiterate here that there are reasons to believe that the overall rate of delegation is upwardly biased in this sample; however, there is no indication that there is any bias in the *distribution* of policy functions or choice of agents. Thus, I present these data with some caution.

Once a treaty has entered into force, the governance landscape shifts. Different policy functions occur with different frequencies. Table 4 shows the distribution of policy functions, irrespective of whether or not they are delegated. Interestingly, adjudication functions are entirely absent from the sample. Similarly, there are very few instances of enforcement, again suggesting that states prefer to decide on compliance issues *before* signing on to an agreement – or not at all (Fearon 1998).

Table 4 shows delegation by agent at the post-treaty level. States delegate much more frequently to non-state agents at the post-treaty level: 7.1 percent of all policy functions are delegated to private actors at the post-treaty level. By far, implementation is the most frequently delegated. By contrast, adjudication and enforcement are never delegated to private actors at the post-treaty level. Non-state actors serve as the sole agent in 13 percent of the functions delegated to them (although note that this is only four functions). This is significantly larger than at the treaty level, where the equivalent figure was less than 1 percent.

6. Descriptive inference: What can we infer about the role of non-state actors as governors?

In this final section, I conduct additional analysis to further understand the role of non-state agents in global environmental governance. Because others have pointed to the growth in private regulation, it is worth investigating the extent to which this pattern is repeated in the area of environment. The descriptive statistics above suggest that it is *not*. States rarely delegate to non-state actors, and when they do, other agents are often involved.

Descriptive inference from such carefully collected data allows us to use observations to learn about unobservable ones (King *et al.* 1994). This is distinct from causal inference, which allows us to learn about the causal effects based on observable data. Description is often underappreciated, but is critically important for building theories. As King *et al.* note, "good description is better than bad explanation" (1994, p. 45). Their exhortation for good description combining others' scholars calls for mid-range theory justifies the approach taken here. In this section, I probe patterns of delegation examining temporal, substantive, and governance trends. These provide insights into what types of agreements contain transnational delegation and how these patterns change over time.

6.1. Temporal trends

Figure 1 shows the percentage of policy functions delegated to non-state actors by decade. The only clear pattern from the figure is that delegation occurs more frequently than it did in the distant past (near the turn of the century). But if we focus on the last three decades, can we confirm that transnational delegation is really a "new" phenomenon?

To answer this question, I conduct a difference in means test. The year 1992 is widely viewed as a watershed year in global environmental governance. The Rio Conference on Environment and Development was held, and three major

Table 4 Number of policy functions delegated by actor, post-treaty level (n = 438)

	State agent (no.)	State (%)	IO agent (no.)	IO agent (%)	Non-state agent (no.)	Non-state agent (%)
Rulemaking	39	27	56	23	7	23
Adjudication	0	0	0	0	0	0
Implementation	72	50	139	57	20	65
Monitoring	29	20	45	18	4	13
Enforcement	4	3	5	2	0	0
TOTAL (per actor)	144	100	245	100	31	100

IO, international organization.

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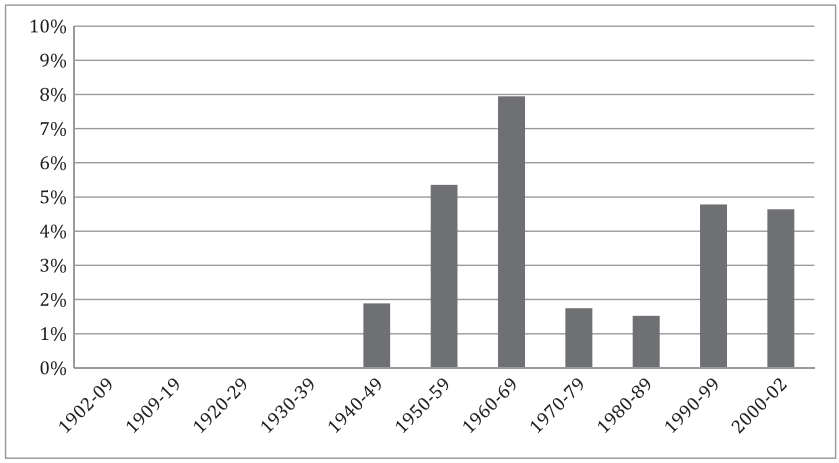

Figure 1 Proportion of total policy functions delegated, by decade.

conventions were signed: the Framework Convention on Climate Change, the Convention on Biological Diversity, and the Convention to Combat Desertification. The Rio Summit was also marked by the presence and activity of non-state actors, whose role is affirmed in Agenda 21.

Thus, 1992 seems a natural cut-off point to separate "modern" environmental governance from the earlier epoch. I conduct a difference in means test – both at the level of the treaty, and at the level of the policy function – to see whether there are more policy functions delegated to non-state actors after 1992. Once again, the unit of analysis makes a difference. I find that, in both cases, there is a statistically significant increase in private delegation after 1992. When delegation is aggregated by treaty, the average number of functions delegated to non-state actors is almost three times higher, increasing from 0.24 to 0.68 ($p < 0.01$). However, when I examine the total functions delegated (i.e. not averaged by treaty), the rate is even higher: the number of functions delegated increases more than four-fold, from 0.25 to 1.07 ($p < 0.001$). Again, this demonstrates the importance of looking beyond the aggregate numbers of the treaty to understand the nuts and bolts of governance.

6.2. Substantive trends

I also examine whether states are more likely to enlist the help of non-state actors for certain types of environmental problems. Mitchell's database classifies each treaty by subject area: energy, freshwater resources, habitat, nature, ocean, pollution, species, and weapons and environment.[9]

Treaties related to nature delegate more than three times as many policy functions to non-state actors than those not related to nature ($p < 0.01$). Nature-related treaties are those that are "related to efforts to conserve, manage, preserve, and protect natural resources, natural systems, and wilderness or to foster sustainable development" (Mitchell 2002–2016). These include treaties such as the Convention On Environmental Impact Assessment In A Transboundary Context and the Convention On Fishing And Conservation Of The Living Resources Of The High Seas.

Nature-related treaties tend to be more complex than treaties dealing with other issues, in that they involve active management of species and ecosystems. This is reflected by the fact that nature-related treaties have, on average, almost four times more policy functions per treaty than non-nature related treaties. The complexity of these agreements, paired with the expertise they require, may increase the need for third party agents. This explanation is supported by a logit regression, which shows a statistically significant relationship between the presence of transnational delegation and the total number of functions per treaty. For each additional function in a treaty, the likelihood of delegation to non-state actors increases by 1.05 ($p < 0.05$).

By contrast, pollution-related treaties delegate *less* frequently to non-state actors; non-pollution related treaties delegate, on average, 0.43 functions, whereas pollution related treaties delegate only 0.09 ($p < 0.05$). This includes treaties such as the Convention Concerning The Prevention Of Major Industrial Accidents and the ASEAN Agreement On Transboundary Haze Pollution. These treaties generally require states to *refrain* from doing things, which, from a governance perspective, may be a simpler task to carry out. For example, the primary goal of the Convention On The

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Protection Of The Rhine Against Pollution By Chlorides is stated in Article 2: "The discharge of chloride ions into the Rhine will be reduced by at least 60 kg/s of chloride ions (annual average)." The ASEAN Agreement aims to "prevent and monitor transboundary haze pollution as a result of land and/or forest fires…"

None of the other substantive areas – energy, habitat, ocean, species, and weapons and environment show any differences in patterns of delegation to non-state actors.

6.3. Patterns of governance

I now turn to whether non-state actors are more likely to perform certain policy functions, and whether certain institutional features are associated with transnational delegation. There are several patterns of interest.

First, I find that transnational delegation is associated with higher mean numbers of enforcement and adjudication functions. These differences are statistically significant at the 0.05 or 0.01 level. This suggests that non-state actors are perceived desirable as legalization of a treaty rises (Abbott *et al.* 2000) – although it does not necessarily mean that they are selected as the agents to carry out these policy functions. Put another way, even though transnational delegation and enforcement and adjudication co-occur in treaties, it does *not* mean that non-state agents undertake these functions. Indeed, Table 2 indicates that they *rarely* take on these functions.

This finding again emphasizes the importance of analysis at the level of the policy function. If one focused only at the treaty level, the observation could not go beyond a simple correlation between the presence of a specific function, say, enforcement, and the choice to delegate. One would not be able to tell whether enforcement itself was delegated. By looking at the level of the policy function, we can say that more highly legalized treaties tend to include non-state agents, but not necessarily for the functions that make them more highly legalized. There is no ready explanation for *why* more legalized treaties involve non-state agents without necessarily delegating to them. Rather than hazard a conjecture without evidence, I simply note that this puzzle requires further investigation.

Second, delegation to non-state actors is much more prevalent when there is a secretariat present: the average number of functions delegated increases from 0.1 to 0.75 in the presence of a secretariat.[10] (Interestingly, despite discussions of the proliferation of secretariats [Jinnah 2014] and other "emanations" in global environmental governance [Johnson 2014], only 39 percent of the treaties in the sample have secretariats.) This observed variation is not simply a function of time. States have delegated to private agents more frequently after 1992; however, only 23 of the 59 treaties with secretariats (39 percent) were signed after 1992.

I suggest two possible explanations for the propensity to delegate in treaties with secretariats. First, states may feel more comfortable delegating when there is a secretariat present to screen and monitor agents, reducing the likelihood that they will fail to carry out states' orders. This is consistent with the delegation literature that emphasizes the risks of agency slack as factor in the decision to delegate. Or it may be that the presence of a secretariat is simply evidence of a more complex and more institutionalized treaty. This is also plausible given that treaties with a secretariat have more than double the number of policy functions than those without ($p < 0.001$).

Third, treaties are also becoming more complex: they are longer and more involved than in the past. Figure 2 shows the total number of policy functions per treaty over time; there is a clear linear increase over time. The correlation coefficient between the two variables is 0.51, significant at the 0.01 level. Treaties are becoming more involved, and therefore, may simply require more actors to execute them. Indeed, those treaties that delegate to non-state actors are more complex; on average, they have four more policy functions per treaty than those that do not delegate to private actors ($p < 0.01$). The same is *not* true of treaties that delegate to IOs; there is no difference in the complexity of treaties that delegate to IOs and those that do not. Coupled with the finding that non-state actors are rarely selected as the sole agents, this finding suggests that non-state agents are the "add-on" as treaties become more complex. This may simply be a result of the fact that more actors are needed; they appear to be complements to other agents that states select.

6.4. Actor trends

Much of the literature on delegation focuses on states' preference as a driver of delegation. In general, scholars have argued that homogeneity among state preferences is correlated with delegation (Epstein & O'Halloran 1999; Hawkins *et al.* 2006; Stone 2009). I investigate whether the same pattern holds in the case of delegation to non-state actors. Here, I switch the unit of analysis from the policy function to the treaty level and ask: Are treaties in which the parties have heterogeneous preferences more or less likely to delegate to non-state actors?

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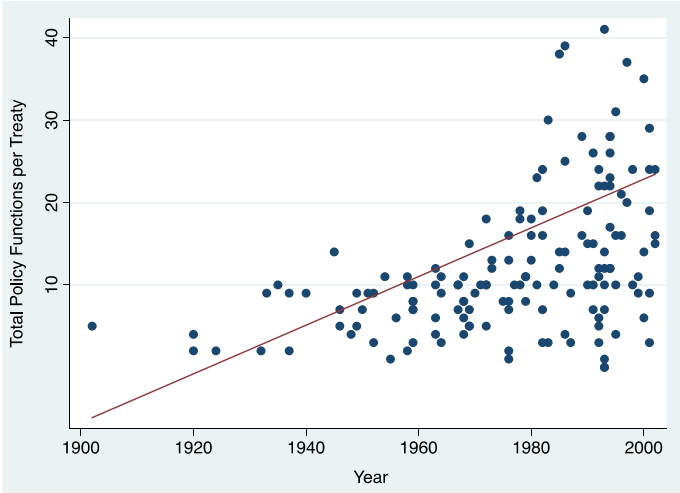

Figure 2 Policy functions per treaty over time.

I use three different measures of preference heterogeneity. First, the total number of parties is used as a rough proxy for heterogeneity; the assumption is that more parties will mean more heterogeneity. Similarly, I measure the number of regions represented in the treaty. Given the persistent and relatively constant split between the developed and developing worlds on environmental issues (see, e.g. Najam 2005), one would expect that treaties representing fewer regions would have more shared interests, and therefore more homogenous preferences. Third, I examine how much time elapses between signing the treaty and its entry into force; here I assume that longer periods of time (as measured in months) means greater difference of opinion among the parties. None of the measures indicates a significant relationship between state preferences and the use of non-state agents. In contrast to other works in the delegation literature, I find that with regard to non-state actors, heterogeneous state preferences are not a factor.

Virtually all of the treaties that delegate to non-state actors also delegate to IOs (94 percent). However, at the policy function level, the patterns look different. 44 percent of all policy functions delegated to private actors are also delegated to IOs. And 26 percent are delegated simultaneously to state agents. Difference of means tests show the average number of policy functions delegated to IOs is almost 50 percent *higher* when states *also* delegate to private agents, suggesting that the presence of additional agents serves as some reassurance to states ($p < 0.05$). Interestingly, the reverse does not hold. That is, states do not delegate more to IOs when non-state actors also serve as agents.

The descriptive inference yields a number of important findings. First, although overall states infrequently delegate to non-state agents, they are doing so more now than they have in the past. The birth of modern environmentalism in 1992 coincides with greater reliance on non-state agents. There is some indication that non-state agents are more desirable in treaties related to nature, which also happen to be more complex treaties. There is also more delegation in the presence of a Secretariat. Finally, it is clear that non-state actors often act in tandem with, or in addition to other actors charged with the same policy functions.

7. Conclusion

Despite a large literature on delegation, there is relatively little work on transnational delegation: instances in which states use non-state actors as agents. This paper is an effort to recognize this category of political activity and engage in some preliminary analysis about how it works. I use new data from 100 years of multilateral environmental agreements to examine how non-state actors serve as agents. By shifting the unit of analysis from the treaty level to the policy function, I am able to uncover patterns not evident at higher levels of aggregation.

The data clearly demonstrate two different stories. At the treaty level, transnational delegation occurs fairly frequently. However, if we shift to a more fine-grained analysis and examine delegation at the level of the policy function, we see that states rarely delegate to non-state actors. Less than 4 percent of all policy functions in the dataset are

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delegated to non-state agents, although they are selected as agents in 20 percent of the treaties. Although null findings are not especially prized in social science, it is nonetheless important to identify the "significance of a thing's absence" (Lewis & Lewis 1980, p. 585). Despite the permeability of environmental politics to non-state actors, they do not play a large role in multilateral treaties.

There is, of course, some nuance to the story. Transnational delegation is more common now than before 1992. The era of "modern" global environmental politics includes a more prominent role for non-state agents. This is consistent with Bernstein's view of liberal environmentalism, where environmental protection is promoted through "the maintenance of a liberal economic order" (2002, p. 1). To the extent that liberal environmentalism remains the dominant frame in global environmental politics, we should expect non-state actors to remain a permanent fixture.

Several other trends point to a growing role for non-state agents. First, multilateral environmental agreements are becoming more complex in the sense that there are more policy functions per treaty – an interesting finding in and of itself. Second, more complex treaties are associated with greater delegation to non-state actors. Thus, to the extent that we have more environmental governance, and it is more complex, we should expect to see an increased role for non- state actors. Third, although they are rarely the sole agents charged with governance tasks, non-state actors are very frequently part of a "team" that includes IOs. This suggests that the move toward "multistakeholder governance" is also being institutionalized through environmental lawmaking (Bäckstrand 2006).

Future investigations should examine the conditions under which states enlist non-state actors as agents. For now, the data suggest that although overall transnational delegation is not a widespread phenomenon, the trends suggest that we should see more, not less delegation to non-state actors in the future.

Notes

1 This is calculation is based on Figure 1. However, it is approximate, as the histogram does not include exact frequencies (they can be estimated visually).
2 The definition for each of these issue areas is available from Mitchell (2002–2016).
3 These categories are adapted from Bradley & Kelley (2008) who outline eight types of delegated authority: legislative, adjudicative, monitoring and enforcement, regulatory, agenda-setting, research and policy advice, policy implementation, and redelegation. Abbott & Snidal (2009) speak of five components of the regulatory process: agenda-setting, negotiation, implementation, monitoring, and enforcement.
4 The data were coded using the Coding Analysis Toolkit, available from http://cat.texifter.com/
5 The CAT does allow for testing intercoder reliability; however, resource constraints at the time of data collection and coding rendered this option infeasible.
6 See http://www.isr.umich.edu/cps/coil/coding.html for her coding instrument.
7 Sample size was selected based on the level of delegation at the treaty level. At the treaty level, 3.8 percent of policy functions were delegated to private actors. I hypothesize that the rate of delegation should *increase* for post-treaty decisions; thus, I estimate the probability of delegation at 7 percent (roughly double the treaty-level rate). I select a sample size such that the estimator of P has 90 percent probability of being no farther than 2.5 percent from the actual rate of delegation (i.e. the proportion of delegation in the population of post-treaty decisions). This estimation aims to balance the goal of precision with a manageable sample size.
8 It is important to note that the total N for environmental agreements in her sample is four.
9 For definitions of each of these categories, see Mitchell (2002–2016).
10 Significant at the 0.001 level.

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